

APPLICATION FOR SETTING ASIDE AN AWARD

In the High Court at Calcutta Ordinary Original Civil Jurisdiction

In the matter of:

The Arbitration & Conciliation Act 1996

And

In the matter of:

An application under section 34 of
the said Act

And

In the matter of:

An Arbitration Agreement contained
in the Contract No. 3 dated

And

In the matter of:

Builders India Private Ltd., a
company registered under the
Companies Act 1956 and carrying
on business at 7A, Camac Street,
Calcutta 700 016

Petitioner versus

Eastern India Enterprise, a company
registered under the Companies Act 1956
and carrying on business at 6 S.P.
Mukherjee Road, Calcutta 700 025

Mr. D.N. Banerjee of 7 Hindusthan
Park, Calcutta 700 029

Respondents

To

The Hon'ble Mr

Chief Justice and His Companion Justices of the said Hon'ble Court

The humble petition of the petitioner above-named most respectfully

SHEWETH:

1. By and under an agreement dated.....the petitioner undertook to construct houses, flats and guest-houses, for the first respondent on agreed specifications, terms and conditions and price.
2. Your petitioner completed the work, obtained payment of the running bills, offered delivery of houses, flats and guest houses and claimed payment of the final bill.
3. The first respondent raised various minor objections with a view to withhold payment of the outstanding bills.
4. Pursuant to the arbitration clause in the said agreement the parties herein that is the petitioner and respondent No. 1 appointed respondent No. 2 as the sole arbitrator to settle and adjudicate all the disputes and differences, between the petitioner and the first respondent arising out of the construction work done by the petitioner for the first respondent.
5. The differences and disputes arose on.....and thereafter the same were referred to the arbitration of respondent No. 2 on and respondent No. 2 entered into the reference on
6. Thereafter several sittings were held and both the petitioner and the first respondent adduced both documentary and oral evidence.
7. Respondent No, 2 gave his award onnotified the same to the parties with a copy thereof on.....A copy of the Award is annexed hereto marked 'A'

8. The said award is invalid and be set aside for, *inter alia*, the following reasons:

- (a) the said award deals with a dispute not contemplated by the parties;
- (b) the said award deals with a matter not falling within the terms of submission to arbitration;
- (c) the said award contains decisions on matters beyond the scope of the submission to arbitration.
- (d) the award does not deal with issue No. 5 raised and settled.

9. The disputes referred to respondent No. 2 for arbitration will appear from the statement of facts and counter statement of facts. Copies of those documents are annexed hereto marked 'B' and 'C' respectively.

10. The parties raised several issues. Thereafter respondent No. 2 settled these issues and the parties did not object.

11. After the award is given it is found that the award deals with issues not raised and the award omits to adjudicate on issue No. 5 which was raised and settled by respondent No. 2.

12. Your petitioner states that the said Award is bad in law and in fact. The said award is invalid and should be set aside.

13. Your petitioner states that this Hon'ble Court will be pleased to scrutinise the Award and documents filed along with award and direct further enquiry as may be necessary and thereafter set aside the said award.

14. Unless orders are made as prayed for herein your petitioner will suffer loss and prejudice.

15. This application is made *bona fide* and in the interest of justice.

16. Your petitioner therefore humbly prays Your Lordships for the following orders:

- (a) The Award given by respondent No. 2 on.....be set aside;
 - (b) Costs of this application be paid by respondent No. 1;
 - (c) Further orders be made and directions be given as to this Hon'ble Court may deem fit and proper;
- And your petitioner as in duty bound shall ever pray.

Signature of the Advocate
for the petitioner

Signature of
the petitioner

Verification

I,.....son of.....aged about.....years by occupation service, working for gain at 7A, Camac Street, Calcutta 700016 do hereby solemnly affirm and say as follows:

I am the Manager of Builders India Private Ltd. and its Principal Officer and Constituted Attorney. I know and I have made myself acquainted with the facts and circumstances of this case and I am able to depose thereto. I am authorised and competent to verify the aforesaid petition and I do verify the same on behalf of the petitioner.

The statements contained in paragraphs 1 to 15 hereinabove are true to my knowledge based on information derived from records maintained by the petitioner company and I believe them to be true. Solemnly affirmed by the said Mr.....pursuant to Board Resolution dated.....of the Builders India Private Ltd. in the Court House at Calcutta on the 15th day of December 1999.

Before me Commissioner